20.08.2024

LEGAL NOTICE

To

1.Rajarathinam
S/o. Velusamy
Residing at Kalappan Thottam,
Karamadai Road,
Kembanayakanpalayam,
Pongalur Village,
Annur Post, Coimbatore.

2.Sughanthi
D/o. Velusamy
Residing at No.161, Royal Enclave,
Opposite to Ragham Bakery,
Kurumbampalayam, S S Kulam (Via.)
Coimbatore.

3.Karunambikai
D/o.Late.Sangarappan Gounder,
Residing at Royar Thottam,
Thottathusalai, Mopiripalayam,
Karumathampatti,
Coimbatore.

4.Rajeswari
W/o. Late.Ramalingham
Residing at 8th Street, Dheeran Chinnamalai Nagar,
Kovai Road,
Karumathanpatti,
Coimbatore.

5.Hari Prasad
S/o. Late.Ramalingham
Residing at 8th Street, Dheeran Chinnamalai Nagar,
Kovai Road,
Karumathanpatti,
Coimbatore.

6.Kishore Karthick
S/o. Late.Ramalingham
Residing at 8th Street, Dheeran Chinnamalai Nagar,
Kovai Road,
Karumathanpatti,
Coimbatore.

Sir/Madam,

Under instructions from my client Mrs. S.Sivakami W/o. Danushkodi, residing at No.96F, Avinashi Road, Karumathampatti Flyover North Side, Coimbatore 641659, I issue the following legal notice to you;

That my client along with the aforementioned addressee No. 3, one Rukmani and S. Ramalingham are all children of their parents Sankarappan and Chinnammal. My client states that the properties comprising an extent of 2.46 cents in S.F. No. 481 along with 11 cents of common passage, 1 cent in S.F. No. 480/2A, 2.07 acres in S.F. No. 480/2C, 5.70 acres in S.F. No. 485/2A and 2.88 acres in S.F. No. 486/1D all situate in Mopiripalayam Village, Coimbatore, belonged to my client's mother Chinnammal absolutely by virtue of a Partition Deed dated 14.09.1967, registered as Doc. No. 1688/1967 at the SRO, Annur, whereby she was allotted with the aforementioned properties under Schedule A therein and thereby she has been in peaceful possession and absolute enjoyment of the same ever since then. Whereas, during her life time, she sold an extent of 2.88 acres in S.F.No.486/1D and retained the remaining extent as as above. Whileso, the said Chinnammal also purchased an extent of 1.00 acres in S.F.No.481 in same village under Sale Deed dated 13.12.1968 registered as Doc No.117/1969 at SRO, Annur out of her own source and the said property is also in her possession and enjoyment. Whileso, the said Chinnammal died intestate on 11.03.2021 and her husband Sanakarappan died intestate on 30.12.2021 both by leaving behind their daughters namely Sivakami and Karunambikai viz., my client and Addressee No.3, son by name Ramalingam and children of predeceased daughter Rukmani namely Rajarathinam and Suganthi viz., Addressee Nos. 1 and 2 as her legal heirs to succeed her estates. So also, the said Ramalingam died intestate on 07.09.2021 by leaving behind his wife Rajeswari and sons Hari Prasad and Karthick Kishore viz., Addressee Nos. 4 to 6 as his legal heirs to succeed his share of estates.

My client further states that after her mother's death all the aforementioned addressees along with my client have been in joint and constructive possession of the properties detailed in the Schedule below. However at present, there has been disturbances in the joint enjoyment of the properties with the aforementioned addressees since the month of July 2024 onwards, prompting her to demand a partition of the properties listed in the Schedule and be allotted with her rightful share since she no longer intended to be in joint possession. Though initially, all of the aforementioned addressees agreed to her request, later on you all evaded to effect partition under some pretext or other.

Therefore, you are all hereby called upon to come forward for an amicable

partition of the Schedule mentioned properties by allotting her 1/4th share within 15 days of receipt of this notice. Failing which, please take notice my client will proceed legally by claiming partition before the court of law by holding you liable for all costs and consequences.

SCHEDULE OF PROPERTY:

கோயம்புத்தூர் ரிட்டு, அன்னூர் சப் ரிட்டு பல்லடம் தாலுக்கா மோப்பரிபாளையம் கிராமத்தில் இனாம் சர்வே புஞ்சை 481. நெ.காலையில் ஈடு 7.05 க்கு 9.66 இதில்

தெற்கோட்டில் வன்னாத்தாங்கரைக்கு	-	வடக்கு
3ஆம் லக்கமிட்ட கண்ணம்மாள்` பங்குக்கு	-	கிழக்கு
சின்னையா கவுண்டர் வாரிசுதாரர் பங்குக்கு	-	தெற்கு.
480 நெ.காலைக்கு	-	மேற்க்கு

இதன் மத்தியில் ஏ.2.46 மற்றும் ஷை பாகத்திதுள்ள துரஸ்த்து கிணறு பூராவும்.

ஷை கிணத்தில் வைக்கப்பட்டிருக்கும் 5 H.P மின் சார பம்பு செட்டும்

ஷை காலையிலுள்ள பழய பொது கிணர் 1ல் தென்புரம் சரிபாதியில் பொதுவில் 4 இல் 3 பாகமும்.

இ.ச.பு 480/2C ல் பு ஏ 2.07 பூராவும், க.ச எண்.481, பு.ஏ.1.00ம், தடபாத்தியம் அனைத்தும், க.ச.எண்.480/2A ல் 0.01ம், க.ச எண்.486 ல் வண்டி தடம், சாலைக்கு விடப்பட்ட பு.ஏ0.15 ல் பொதுவில் பு.ஏ.0.11 ம் இத்துடன் உள்ள கிணர், சாலை சகிதம் மற்றும் க.ச.485/2Aல் பு.ஏ.5.70ம் மற்றும் தடபாத்தியம் சகிதம் மற்றும் க.ச.எண். 485/2A ல் பு.ஏ.5.70-ம் மற்றும் தடபாத்தியம் சகிதம்.

ADVOCATE